(Added Pub. L. 93–203, title VII, § 711(a), formerly title VI, § 611(a), Dec. 28, 1973, 87 Stat. 881; renumbered title VII, § 711(a), Pub. L. 93–567, title I, § 101, Dec. 31, 1974, 88 Stat. 1845; amended Pub. L. 95–524, § 3(a), Oct. 27, 1978, 92 Stat. 2017; Pub. L. 97–300, title I, § 182, Oct. 13, 1982, 96 Stat. 1357; Pub. L. 101–647, title XXXV, § 3517, Nov. 29, 1990, 104 Stat. 4923; Pub. L. 103–322, title XXXIII, § 330016(1)(H), (L), Sept. 13, 1994, 108 Stat. 2147.)

REFERENCES IN TEXT

The Comprehensive Employment and Training Act, referred to in text, is Pub. L. 93–203, Dec. 28, 1973, 87 Stat. 839, as amended, which was classified generally to chapter 17 (§ 801 et seq.) of Title 29, Labor, and was repealed by Pub. L. 97–300, title I, § 184(a)(1), Oct. 13, 1982, 96 Stat. 1357. For complete classification of this Act to the Code prior to its repeal, see Tables.

The Job Training Partnership Act, referred to in text, is Pub. L. 97–300, Oct. 13, 1982, 96 Stat. 1322, as amended, which is classified generally to chapter 19 (§ 1501 et seq.) of Title 29. For complete classification of this Act to the Code, see Short Title note set out under section 1501 of Title 29 and Tables.

CODIFICATION

Section 711(a) of Pub. L. 93–203, cited as a credit to this section, was omitted in the general revision of Pub. L. 93–203 by Pub. L. 95–524.

AMENDMENTS

1994—Subsec. (a). Pub. L. 103–322 substituted ''fined under this title'' for ''fined not more than $10,000'' after ''such Act shall be'' and for ''fined not more than $1,000'' after ''person shall be''.

Subsec. (b). Pub. L. 103–322, § 330016(1)(H), substituted ''fined under this title'' for ''fined not more than $1,000''.

1990—Pub. L. 101–647 substituted semicolons for colons in section catchline and ''Whoever'' for ''Any person whoever'' in subsec. (c).

1982—Subsec. (a). Pub. L. 97–300 inserted ''or organization'' after ''any agency'', ''or any funds'' after ''financial assistance'', ''or Job Training Partnership Act'' after ''Comprehensive Employment and Training Act'', substituted ''participant'' for ''individual or individuals'', and ''financial assistance agreement or contract'' for ''grant or contract of assistance''.

Subsec. (b). Pub. L. 97–300 substituted ''financial assistance agreement or contract'' for ''grant or contract of assistance'', inserted ''or the Job Training Partnership Act'' after ''Comprehensive Employment and Training Act'', substituted ''any person'' for ''any persons'' after ''induces'', and substituted ''organization or agency receiving funds'' for ''grantee agency''.

Subsec. (c). Pub. L. 97–300 inserted ''willfully'' before ''endeavors to obstruct'', and ''or the Job Training Partnership Act'' after ''Comprehensive Employment and Training Act''.

1978—Pub. L. 95–524 substituted ''employment and training funds:'' for ''manpower funds;'' and inserted '': obstruction of investigations'' after ''improper inducement'' in section catchline.

Subsec. (a). Pub. L. 95–524 substituted ''Comprehensive Employment and Training Act knowingly hires an ineligible individual or individuals,'' for ''Comprehensive Employment and Training Act of 1973''.

Subsec. (b). Pub. L. 95–524 substituted ''Comprehensive Employment and Training Act'' for ''Comprehensive Employment and Training Act of 1973''.

Subsec. (c). Pub. L. 95–524 added subsec. (c).

SECTION REFERRED TO IN OTHER SECTIONS

This section is referred to in title 29 section 1592.

§ 666. Theft or bribery concerning programs receiving Federal funds

(a) Whoever, if the circumstance described in subsection (b) of this section exists—

(1) being an agent of an organization, or of a State, local, or Indian tribal government, or any agency thereof—

(A) embezzles, steals, obtains by fraud, or otherwise without authority knowingly converts to the use of any person other than the rightful owner or intentionally misapplies, property that—

(i) is valued at $5,000 or more, and

(ii) is owned by, or is under the care, custody, or control of such organization, government, or agency; or

(B) corruptly solicits or demands for the benefit of any person, or accepts or agrees to accept, anything of value from any person, intending to be influenced or rewarded in connection with any business, transaction, or series of transactions of such organization, government, or agency involving any thing of value of $5,000 or more; or

(2) corruptly gives, offers, or agrees to give anything of value to any person, with intent to influence or reward an agent of an organization or of a State, local or Indian tribal government, or any agency thereof, in connection with any business, transaction, or series of transactions of such organization, government, or agency involving anything of value of $5,000 or more;

shall be fined under this title, imprisoned not more than 10 years, or both.

(b) The circumstance referred to in subsection (a) of this section is that the organization, government, or agency receives, in any one year period, benefits in excess of $10,000 under a Federal program involving a grant, contract, subsidy, loan, guarantee, insurance, or other form of Federal assistance.

(c) This section does not apply to bona fide salary, wages, fees, or other compensation paid, or expenses paid or reimbursed, in the usual course of business.

(d) As used in this section—

(1) the term ''agent'' means a person authorized to act on behalf of another person or a government and, in the case of an organization or government, includes a servant or employee, and a partner, director, officer, manager, and representative;

(2) the term ''government agency'' means a subdivision of the executive, legislative, judicial, or other branch of government, including a department, independent establishment, commission, administration, authority, board, and bureau, and a corporation or other legal entity established, and subject to control, by a government or governments for the execution of a governmental or intergovernmental program;

(3) the term ''local'' means of or pertaining to a political subdivision within a State;

(4) the term ''State'' includes a State of the United States, the District of Columbia, and any commonwealth, territory, or possession of the United States; and

(5) the term ''in any one-year period'' means a continuous period that commences no earlier than twelve months before the commission of the offense or that ends no later than twelve months after the commission of the of-

fense. Such period may include time both before and after the commission of the offense.

(Added Pub. L. 98–473, title II, § 1104(a), Oct. 12, 1984, 98 Stat. 2143; amended Pub. L. 99–646, § 59(a), Nov. 10, 1986, 100 Stat. 3612; Pub. L. 101–647, title XII, §§ 1205(d), 1209, Nov. 29, 1990, 104 Stat. 4831, 4832; Pub. L. 103–322, title XXXIII, § 330003(c), Sept. 13, 1994, 108 Stat. 2140.)

AMENDMENTS

1994—Subsec. (d)(3) to (5). Pub. L. 103–322 struck out ''and'' at end of par. (3), substituted ''; and'' for the period at end of par. (4), and redesignated second par. (4) defining ''in any one-year period'' as (5).

1990—Subsec. (d)(4). Pub. L. 101–647, § 1209, added par. (4) defining ''in any one-year period''.

Pub. L. 101–647, § 1205(d), added par. (4) defining ''State''.

1986—Pub. L. 99–646, in amending section generally, made specific reference to applicability of section to agent of Indian tribal government or agency thereof, inserted provision that section does not apply to bona fide salary, wages, fees, or other compensation paid, or expenses paid or reimbursed, in usual course of business, struck out definition of term ''organization'', and otherwise revised structure of section.

SECTION REFERRED TO IN OTHER SECTIONS

This section is referred to in sections 981, 982, 1516, 1956 of this title.

§ 667. Theft of livestock

Whoever obtains or uses the property of another which has a value of $10,000 or more in connection with the marketing of livestock in interstate or foreign commerce with intent to deprive the other of a right to the property or a benefit of the property or to appropriate the property to his own use or the use of another shall be fined under this title or imprisoned not more than five years, or both. The term ''livestock'' has the meaning set forth in section 2311 of this title.

(Added Pub. L. 98–473, title II, § 1111, Oct. 12, 1984, 98 Stat. 2149; amended Pub. L. 103–322, title XXXIII, §§ 330009(b), 330016(1)(L), Sept. 13, 1994, 108 Stat. 2143, 2147.)

AMENDMENTS

1994—Pub. L. 103–322 substituted ''fined under this title'' for ''fined not more than $10,000'' and inserted at end ''The term 'livestock' has the meaning set forth in section 2311 of this title.''

§ 668. Theft of major artwork

(a) DEFINITIONS.—In this section—

''museum'' means an organized and permanent institution, the activities of which affect interstate or foreign commerce, that—

(A) is situated in the United States;

(B) is established for an essentially educational or aesthetic purpose;

(C) has a professional staff; and

(D) owns, utilizes, and cares for tangible objects that are exhibited to the public on a regular schedule.

''object of cultural heritage'' means an object that is—

(A) over 100 years old and worth in excess of $5,000; or

(B) worth at least $100,000.

(b) OFFENSES.—A person who—

(1) steals or obtains by fraud from the care, custody, or control of a museum any object of cultural heritage; or

(2) knowing that an object of cultural heritage has been stolen or obtained by fraud, if in fact the object was stolen or obtained from the care, custody, or control of a museum (whether or not that fact is known to the person), receives, conceals, exhibits, or disposes of the object,

shall be fined under this title, imprisoned not more than 10 years, or both.

(Added Pub. L. 103–322, title XXXII, § 320902(a), Sept. 13, 1994, 108 Stat. 2123.)

SECTION REFERRED TO IN OTHER SECTIONS

This section is referred to in section 3294 of this title.

CHAPTER 33—EMBLEMS, INSIGNIA, AND NAMES

Sec.
700. Desecration of the flag of the United States; penalties.
701. Official badges, identification cards, other insignia.
702. Uniform of armed forces and Public Health Service.
703. Uniform of friendly nation.
704. Military medals or decorations.
705. Badge or medal of veterans' organizations.
706. Red Cross.
707. 4–H Club emblem fraudulently used.[1]
708. Swiss Confederation coat of arms.
709. False advertising or misuse of names to indicate Federal agency.
710. Cremation urns for military use.
711. ''Smokey Bear'' character or name.
711a. ''Woodsy Owl'' character, name, or slogan.
712. Misuse of names, words, emblems, or insignia.
713. Use of likenesses of the great seal of the United States, the seals of the President and Vice President, and the seal of the United States Senate.
[714. Repealed.]
715. ''The Golden Eagle Insignia''.

AMENDMENTS

1991—Pub. L. 102–229, title II, § 210(e), Dec. 12, 1991, 105 Stat. 1717, substituted ''Use of likenesses of the great seal of the United States, the seals of the President and Vice President, and the seal of the United States Senate.'' for ''Use of likenesses of the great seal of the United States, and of the seals of the President and Vice President.'' in item 713.

1990—Pub. L. 101–647, title XXXV, § 3518, Nov. 29, 1990, 104 Stat. 4923, inserted a comma after ''INSIGNIA'' in chapter heading.

1982—Pub. L. 97–258, § 2(d)(1)(A), Sept. 13, 1982, 96 Stat. 1058, struck out item 714 relating to ''Johnny Horizon'' character or name.

1974—Pub. L. 93–318, § 8, June 22, 1974, 88 Stat. 245, added item 711a.

1973—Pub. L. 93–147, § 1(b), Nov. 3, 1973, 87 Stat. 555, substituted ''Misuse of names, words, emblems, or insignia'' for ''Misuse of names by collecting agencies to indicate Federal agency'' in item 712.

1972—Pub. L. 92–347, § 3(c), July 11, 1972, 86 Stat. 462, added item 715.

1971—Pub. L. 91–651, § 2, Jan. 5, 1971, 84 Stat. 1941, inserted '', and of the seals of the President and Vice President'' after ''United States'' in item 713.

[1] So in original. Does not conform to section catchline.